

requests. Therefore, plaintiffs are subject to being ordered to provide initial responses to the discovery, without objections. (Code Civ. Proc., §§ 2030.290; 2031.300.)

The court will also grant the defendant's request for sanctions against plaintiffs, as sanctions are mandatory where a party fails to respond to discovery and the failure to respond is unjustified. (Code Civ. Proc., § 2030.290, subd. (c); 2031.300, subd. (c).) Here, plaintiffs have not made any attempt to show that their failure to respond was justified, or that other circumstances would make imposition of sanctions unjust. The requested amount of sanctions is also reasonable. Therefore, the court intends to grant sanctions of \$525 against plaintiffs Jason John Williams and Melvin Lamonte Williams and in favor of defendant CRMC. The court also intends to grant sanctions of \$547.50 against plaintiffs Jason John Williams, Melvin Lamonte Williams, Vicki La Chon Cole, and Barbara Aliane Williams in favor of defendants Afarian, Coelho, Fujimoto, and Herger.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 05/19/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Rexel USA, Inc. v. Charged Up Energy, Inc., et al.***
Superior Court Case No. 23CECG01531

Hearing Date: May 20, 2026 (Dept. 403)

Motion: Plaintiff's Motion to Vacate Dismissal

Tentative Ruling:

To grant. (Code Civ. Proc., § 473, subd. (b).)

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Plaintiff Rexel USA, Inc., ("Plaintiff") moves to have the dismissal of the entire case vacated and the action reinstated against Charged Up Energy, Inc., ("Charged Up") on the basis of mistake and inadvertence.

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief...shall be made within a reasonable time, in no case exceeding six months". (Code Civ. Proc., §473, subd. (b).) When determining whether a mistake or inadvertence was excusable, "the court inquires whether 'a reasonably prudent person under the same or similar circumstances' might have made the same error." (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276 citing *Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.)

On August 6, 2025, Plaintiff filed for dismissal of the case. On August 20, 2025, the court processed and notified parties of the dismissal. When drafting the request for dismissal, counsel for Plaintiff mistakenly marked the box indicating dismissal for the "Entire action of all parties and all causes." (Hassan Decl., ¶ 3.) Plaintiff did not intend to dismiss the case against Charged Up. (*Id.*, ¶ 4.) Plaintiff filed the present motion to vacate on February 9, 2026.

Plaintiff filed their motion to vacate over six months after the request for dismissal. However, this is not fatal because Plaintiff would not have been informed of their error until the dismissal was processed. Plaintiff filed the motion to vacate the dismissal within six months of when the dismissal was processed. Therefore, Plaintiff's request is timely. Plaintiff's mistake is of the type a reasonably prudent person under the same or similar circumstances might have made. Accordingly, the motion to vacate the dismissal and

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